



POLICE DEPARTMENT

June 16, 2010

MEMORANDUM FOR: Police Commissioner

Re: Detective Mike Oner
Tax Registry No. 916363
Housing Borough Manhattan
Disciplinary Case No. 83547/07

The above-named member of the Department appeared before me on March 10, 2010, charged with the following:

1. Said Detective Mike Oner, assigned to Narcotics Borough Staten Island, while on-duty, on or about December 8, 2007, was discourteous to New York City Police Sergeant Dominick Capuano in that said Detective, while another Member of the Service was leaving a voicemail message for said Sergeant, stated, "If that's Sergeant Capuano, tell him to go fuck himself," said statement being recorded as part of the voicemail message.

P.G. 203-09, Page 1, Paragraph 2 PUBLIC CONTACT

2. Said Detective Mike Oner, assigned to Narcotics Borough Staten Island, while on-duty, on or about December 8, 2007, was discourteous to New York City Police Sergeant Dominick Capuano in that said Detective stated in sum and substance, "Thanks for those three days off, the fucking three days I had go to sick for, go fuck yourself," and then hung up the phone on said Sergeant.

P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT

3. Said Detective Mike Oner, assigned to Narcotics Borough Staten Island, while on-duty, on or about December 8, 2007, was discourteous to New York City Police Sergeant Dominick Capuano in that said Detective stated in sum and substance when said Sergeant called back after being hung upon, "Why don't you come down here and fucking suspend me if you want. Go fuck yourself," and hung up on the Sergeant a second time.

P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT

4. Said Detective Mike Oner, assigned to Narcotics Borough Staten Island, while on-duty, on or about December 8, 2007, was discourteous to New York City Police Lieutenant Briscoe in that, said Detective stated in sum and substance, "All you fucking management types stick together," after said Lieutenant admonished Detective Oner for using profanities.

P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT

5. Said Detective Mike Oner, assigned to Narcotics Borough Staten Island, while on-duty, on or about December 8, 2007, having been directed by New York City Police Sergeant Dominick Capuano to put Detective Regina Debellis on the phone, did fail and neglect to comply with said order.

P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT

The Department was represented by Penny Bluford-Garrett, Esq., Department Advocate's Office, and the Respondent was represented by Eric Sanders, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Guilty as charged.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Detective Regina Debellis, Sergeant Dominick Capuano and Lieutenant James Briscoe as witnesses.

Detective Regina Debellis

Debellis is a 14-year member of the Department currently assigned to the field operations desk at Narcotics Borough Staten Island. She testified that she was asked to work a double tour on December 8, 2007. The first tour was from 2200 to 0633 hours and the second began at 0633. She was asked to do the double tour because the Respondent was out sick and coverage was needed for the two tours.

Debellis stated that she came in at 2200 and saw the Respondent sitting at the field operations desk.¹ She said she “was a little confused and annoyed” because she was told that she “had to come in to cover the Respondent’s midnight tour, and then seeing him there obviously meant that he returned from sick and no one had called [her] ahead of time.” She told the Respondent that she was going to call their immediate supervisor, Sergeant Capuano, because there was no reason for her to be there if the Respondent was working.

Debellis said she called Capuano’s cell phone and was leaving him a voicemail message when, “...out of the clear blue sky, and I don’t know what provoked it, [the Respondent] starts yelling in the background... ‘if that’s Sergeant Capuano, tell him fuck you, fuck his mother, fuck him.’ Like I don’t even know why, like screaming, yelling. I was like, okay, boss, talk to you later, bye, and I hung up the phone.”

Debellis recalled that the phone at the field operations desk from which she made the call rang “pretty quickly” after she hung up, and the Respondent picked it up. She said the Respondent started cursing in the phone saying ‘thanks for the fucking days off. I hate this fucking place. I had to go fucking sick,’ and just cursing into the phone, then slammed the phone down and hung up the phone.” Although she did not know if the

¹ The Respondent also worked the field operations desk.

Respondent had spoken to Capuano, as she did not hear his voice on the phone, "as an educated guess...it was reasonable to believe that it was Sergeant Capuano calling back."

Debellis said that in her 14 years with the Department, she had never seen such "bizarre" behavior. She went upstairs to call Capuano from another phone, out of the Respondent's presence. She did not recall if she used the phone while upstairs, as she heard the Respondent "screaming and yelling" downstairs. She said she did not see him on the phone, nor could she hear who he was talking to if he was on the phone, but it sounded as though he was in a conversation. She said she could not make out exact words, but she heard the "the loudness of a voice" and it sounded "very verbally abusive."

Upon returning downstairs, Debellis testified that she saw the Respondent by the field operations desk

...doing these like...Kung Fu kicks and fighting...I don't know what types of moves they are, some sort of karate, ultimate fighting, Jujitsu...He's doing these punches [saying] 'I am going to kick his ass, I am going to snap him like a twig, he is a dick.' It's hard to explain. He obviously knew what he was doing. He didn't look like just this.

Debellis said that shortly thereafter, Capuano came in and the Respondent stated "what, what, what are you going to do? What, what, you're here to suspend me? What, what, I will fucking kick your ass." She said the Respondent's arms were open, out wide, acting as if somebody challenging another person to some sort of a physical fight. Capuano ignored the Respondent and walked upstairs. Debellis said the Respondent went upstairs and she did not see the Respondent again until he walked out to leave. She said that as he was leaving, he was mumbling to himself, "...fuck this place, this place

fucking sucks, fuck them.” She described him as “mad” and “angry.”

Debellis stated that she worked with the Respondent in Brooklyn North Narcotics in the past and she had never seen him or another uniformed member of the service act like that. She said that she did not have a personal relationship with Capuano nor did she get any special treatment from him, “[n]o more than anyone else.”

On cross-examination, Debellis acknowledged that she knew Lieutenant Briscoe but did not know if he was working on December 8, 2007 and she did not check to see if he was. She agreed that in the past, she has worked a tour starting at 2200 hours without supervisors. She said she called Capuano, who was off-duty, to tell him that she and the Respondent “will work it out amongst ourselves.”

Debellis denied that it was her first responsibility to see if there was a supervisor available at the location first before calling Capuano; that throughout her 14-year career, when she has an incident in the workplace, she calls another supervisor at home; or that, in her career, she has ever had any disagreement with a co-worker where she had to ask a supervisor to intervene. While she agreed that, generally, the supervisor who is working is responsible for the people on the tour, she disagreed that it was her first responsibility to find out if there was a supervisor working.

Debellis said that she did not know why the Respondent was upset that night. She said no one authorized her to change the start of her tour from 2127 hours to 2200 hours. She denied that the first conversation or “first yelling” that came from the Respondent was directed at her about why she came in a half hour late and then changed Department records without authorization. She did not think that the Respondent “started yelling and screaming and got upset” because she went to call Capuano. She also did not recall the

Respondent “yelling and screaming at her” because she “came in a half hour late and then changed the roll call without any authorization,” or that “he was upset because he was left to handle the [field operations] desk as well as the security building by himself” because she was not there to help him.

When Debellis saw the Respondent at the field operations desk, she left the post to go upstairs to call Capuano to tell him that “this was a misunderstanding and [the Respondent] wasn’t talking about him, he was just talking in general, and that we would work out the tour by ourselves.”

Debellis agreed that the field operations desk was her post that night, but she believed that once the Respondent was present, she was the “extra person,” as she was covering the Respondent’s steady tour and post. She said her steady post is the day tour. She did not believe there is a rule stating that she cannot leave that desk if someone is assigned to it.

Debellis said she did not mention the Respondent’s “punching and kicking behavior” in her official Department interview, in October 2009, because she was not asked about it. She said that prior to Capuano’s arrival, she did not recall any other supervisors present. She agreed that she stayed at the field operations desk by herself with no supervisors while the Respondent displayed “this irrational behavior, yelling and screaming and kicking and punching.” She told her supervisors about this behavior when she was questioned by them that night.

Sergeant Dominick Capuano

Capuano has been a member of the Department since 1996. He has been a sergeant since 2003 and has been assigned to his current command, Narcotics Borough Staten Island since 2005. In December 2007, he was the command's operations coordinator and the direct supervisor for the administrative staff, including the field operations desk; setting the staff's tours and ensuring that the posts were covered.

Capuano stated that he receives a "wide range" of calls while he is off-duty "[a]ll the time," from officers who are involved in vehicle accidents, calls from people not coming in or going sick, to inquiries on how to turn on the heater. He added that getting contacted off-duty regarding his responsibilities while on-duty "[h]appens quite a bit. More than I would like it to happen."

On December 8, 2007, Capuano was not on duty when he received a voicemail message from Debellis stating that the Respondent "had returned from sick, and now there were two people manning the same post and there would be nobody there for the day tour." In the background of the message, he clearly heard the Respondent state, "if that's Sergeant Capuano, tell him to go fuck himself." Due to technical difficulties with his phone, he was unable to save the voicemail message.

Capuano said he then called the field operations desk because he was concerned about the coverage of the desk and was hoping to mediate the scheduling problem. He said when the Respondent answered the phone, he requested that Debellis be put on the phone so that he could tell her to go home and come back in the morning. Instead, the Respondent said, "Thanks for those three fucking days off that I had to go sick. Go fuck yourself," before hanging up.

Capuano stated the Respondent did not comply with the order to put Debellis on the phone. He called again and the Respondent answered the phone again. Capuano said he told the Respondent, "Mike, I am ordering you to put Detective Debellis on the phone. He said, 'What are you going to do, come down here and fucking suspend me? Come down and fucking suspend me.' At that point, he hung up the phone before I was able to respond again."

Capuano said that at this point, it was "an egregious problem...not just a scheduling problem..., obviously something of more importance." He said he lived [REDACTED] from the command and went there on the night of Saturday, December 8, 2007, even though he was not scheduled to go to work until Monday morning. Upon arriving at the command, Capuano said

I basically saw [the Respondent] standing there with his arms spread out in a threatening manner saying, "What are you going to do, fucking suspend me? Come suspend me." Acting in a really emotionally disturbed way...In my opinion I was threatened. I felt very threatened. I have never seen that in a police officer, only in a perpetrator before. To deescalate the situation, I didn't say a word to [the Respondent], and Lieutenant Briscoe was already present at the [field operations desk] area.

Capuano stated he did not want to escalate the situation so he did not say a word. He went into Briscoe's office after being motioned to do so by the lieutenant, who was at that point, the highest ranking supervisor in the building. Briscoe's office was in an adjoining hallway to the field operations desk. He said he recounted to Briscoe what had happened over the phone, and they called their commanding officer, Captain Hansen, at home. Hansen came to the command immediately and the events were reiterated to him as well. Calls were made to the Chief of Narcotics and the Chief of the Organized Crime

Control Bureau and the Respondent was suspended.

Capuano testified that a week prior to the incident, the Respondent asked for five days off. Because of manpower constraints, he told the Respondent that he could only grant him three days off. He said the Respondent told him, "I need all [of the days] or none." He told the Respondent he could not give him all the days off. Immediately after that, the Respondent went sick for five days.

Capuano said that on December 8, 2007, when Debellis contacted him, he was not aware that the Respondent was coming back to work and that was why he had Debellis scheduled to work the Respondent's shift.

On cross-examination, Capuano explained that the officer who is assigned to the field operations desk is mainly responsible for answering the phone, but the officer can leave the post to do security checks, to check the back door, to pull property out of the back equipment room, "It's not like a patrol fixed post, per se." He said that sometimes there are other individuals inside the command responsible for securing the building other than the person assigned the field operations desk, and sometimes there are not. He acknowledged that there have been times when officers are assigned to the field operations desk and there are no supervisors working. To see if a supervisor was working, an officer assigned to Narcotics Borough Staten Island can check the roll call that is maintained at the field operations desk. He further acknowledged that if Debellis was assigned to the field operations desk that night, she would have seen the roll call because it is there at the desk.

Capuano said that when there is an incident involving two police officers on duty and if there is a police supervisor that is working, the police supervisor or the officers'

immediate supervisor handles the incident. When asked if, based on his training and experience, the police supervisor who is there on duty handles the incident, Capuano replied, "Sometimes. It's not a hard core yes."

Capuano said he did not know what the Respondent was "cursing and screaming" and "upset" about. He denied that the Respondent ever told him about Debellis coming in a half hour late that night, changing the roll call that night or leaving her post at the field operations desk. He stated that he never asked the Respondent why he was upset because he "was a little nervous because he [the Respondent] was armed and acting very irrational." He said Debellis first contacted him at about 10 p.m. and he arrived at the command about an hour later, at 11 p.m. He denied that he left an armed, irrational-acting member of the service in the command for an hour with Debellis and said he did not see that the Respondent was irrational until he "got to the building and saw him for two seconds."

Capuano said that while he was on the phone, he heard the Respondent tell him to "go fuck [him]self," but did not hear the Respondent "screaming and cursing" before the phone call ended. He observed that the Respondent was "irrational" when he arrived at the building and described what he saw:

He had his arms spread out as if he wanted to start a fist fight with me...Basically, he was jumping and screaming, jumping up and down in his spot saying, "What are you going to do, fucking suspend me?"

So to be honest with you, if it wasn't a police setting, and he wasn't a police officer, I usually get treated that way by a perpetrator or somebody posing a threat.

Capuano stated that the Respondent's "go fuck yourself" comment was left on his voicemail in a "loud voice." He said he called the field operations desk and the

Respondent answered the phone, "Very, very insubordinately...He wasn't screaming. He was saying thanks for those three fucking days off...the three fucking days I had to go sick for." Then the Respondent hung up. Capuano called back and the Respondent answered the phone again. Capuano gave the Respondent "a direct, clear order" to put Debellis on the phone so that they could resolve the scheduling problem without coming in from home. He said the Respondent's response was, "What are you going to do, fucking suspend me? Come down here and suspend me." Then the Respondent hung up the phone again.

Capuano denied that he could have resolved the scheduling situation by telling the Respondent to take another post, because "[t]here is no other post." He said that the Respondent was assigned to the field operations desk on the midnight tour, and Debellis had the same post during the day tour. The only reason Debellis was there that night was because the Respondent called in sick. He denied he ever had two persons cover the field operations desk.

Capuano said that he did not call Briscoe, his supervisor, to handle the disagreement about the post coverage, "Because I can handle that. I'm their boss." He said when he left his home to go to the command, "Well, I didn't come there to handle the conflict with the post, I came there to handle the egregiousness of being told to go fuck myself. That's more egregious than a post change. So I felt the need for me to be present and face-to-face handle the situation as a supervisor in the building."

Capuano stated that he has never had anything like this happen to him before, and said that he has "handled everything" himself since he has been in this command rather than asking another supervisor to handle a "personnel incident." He said that if the

Respondent had put Debellis on the phone “[i]t would have been settled in two seconds, and I would have never had to leave my house and come to the command, none of this would have happened.” He said, “I only left my home after I was told to go fuck myself on three occasions. Now the problem changed from a post change to a cop telling a supervisor to go and fuck himself.”

Capuano acknowledged that a “49”² was generated on December 9, 2007 and said he was interviewed as to what happened. He did not recall whether or not he mentioned that the Respondent’s “were flailing and kicking” as he described in the courtroom. He agreed that he gave testimony in an official Department interview and he gave a description of the Respondent “flailing”...“with his arms open.” He said that although the Respondent did not challenge him to a fight, it was his opinion that that was what he was looking to do. He said, “I don’t know how to take it any other way. In my opinion, that’s trying to instigate a physical confrontation. As I’ve done as a police officer, I have seen perpetrators do that in the past right before they start a fight, which is why I said that before.”

Capuano said he never had any dealings with the Respondent prior to his assignment in Narcotics Borough Staten Island.

Lieutenant James Briscoe

Briscoe has been a member of the Department for 23 years and has been assigned to the Chief of Organized Crime Control Bureau since June 2008. Prior to that, he was assigned to Narcotics Borough Staten Island for six years as the narcotics squad commander, overseeing narcotics operations and enforcement in the borough of Staten

² Department memorandum

Island. He said that the administrative staff was responsible for scheduling and ensuring coverage for the field operations desk, which was covered around the clock. The only time he got involved was when there was a lapse in coverage, whereupon he would arrange for one of his field investigators to cover the post.

On December 8, 2007, Briscoe worked a 1435 by 2300 tour as a team leader on a buy-and-bust operation. At about 2200 hours, Briscoe returned from the field. He said the entrance to the building is blocked from view of someone at the field operations desk by a brick wall. When he entered the command, he heard who he believed to be the Respondent speaking in a loud voice and using profanity. When he cleared the brick wall and saw the Respondent and Debellis at the field operations desk, the conversation stopped. He said he inquired if everything was all right. The detectives told him there was no problem and he proceeded to his office, which was 10 to 15 feet down the hallway.

Five to 10 minutes later, he again "heard some type of disagreement, some arguing, some cursing going on..." He left his office and went to the field operations desk, where the Respondent appeared to be the only one doing the cursing. He did not hear Debellis cursing or screaming. He advised the Respondent that if he had a problem, "that would have to be addressed in a proper forum," and that the way he was acting was "not acceptable behavior."

Briscoe said that the Respondent countered, "You fucking management types are all alike. You stick by one another." He believed Debellis was still standing there. He advised the Respondent that that was not acceptable, and that he was going to "be issued disciplinary action for that behavior." Briscoe said the Respondent discontinued his

conduct and he returned to his office.

Shortly thereafter, Capuano entered Briscoe's office and reiterated events that transpired that evening between Capuano, the Respondent and Debellis over coverage of the field operations desk. According to Briscoe, the Respondent returned from sick and Capuano, who had anticipated that the Respondent would still be out sick, made arrangements for Debellis to come in to cover the field operations desk. He said that Capuano told him that he made several phone calls and had asked to speak to various people, and he overheard the Respondent "using insubordinate terms specifically like, 'go fuck yourself. If that's Sergeant Capuano, tell him to go fuck himself...'"

Upon hearing this conversation with Capuano, Briscoe realized that he had been "coming in on bits and pieces" of the Respondent's interaction with Capuano, from when he returned from the field and further heard profanities when he emerged from his office. He called Hansen, the commanding officer, who responded to the command and Hansen suspended the Respondent. Briscoe said he has never had any negative interaction with the Respondent prior to this incident.

On cross-examination, Briscoe said he never had a problem with the Respondent while assigned to Narcotics Borough Staten Island. He said it did not seem unusual that the Respondent would act in this manner because "[p]eople have good days and bad days." He said when he walked in, the Respondent's "activity" ceased. He admitted he has heard police officers curse before but could not recall specifically the last time he heard a police officer curse while working. He said he did not know to whom the cursing was being directed, as the cursing stopped by the time he arrived at the field operations desk and the only two people standing there were the Respondent and Debellis.

Briscoe said he knew it was the Respondent who was cursing and yelling. The first time he heard this, he asked both detectives if there was a problem, which they denied. He took this to mean "the condition was corrected," and he went on with his duties. He denied suspending the Respondent or giving him a command discipline for his initial conduct.

Briscoe said that later on, while in his office, he heard more profanities and went out and saw Debellis and the Respondent, who was yelling and cursing. He said this was "prolonged" and continued upon his arriving on the scene. He advised the Respondent that if there was a problem that could not be corrected at that point, they "would take it to the proper forum and correct it, but this behavior being exhibited was not to continue." By proper forum he meant "go into an office, talk things out, see what the issues exactly were to remedy the situation."

Briscoe stated that he never asked the Respondent what he was upset about, and the Respondent never told him. The Respondent did not have a conversation with Briscoe other than the comment about management types being alike and sticking together.

Briscoe said that when he first saw the Respondent, aside from the "yelling and screaming and cursing," his general demeanor "seemed fine...He didn't seem anything. He wasn't ranting, didn't seem out of control at that point..." He did not recall, upon walking in, the Respondent flailing his arms and acting in a manner with his arms out to the side.

Briscoe stated that Debellis did not state to him that the Respondent's actions "placed her in fear of her life." She did not seem like she was fearful of the Respondent.

He did not know what Debellis did after he went into his office, after he initially saw her. He said he had no conversation with her where she told him that the Respondent "was acting in an irrational manner such as flailing his arms to the side and yelling and screaming," nor did she tell him she felt threatened. He said the second time he saw the Respondent, he was "obviously a lot more...riled up than he was initially the first time..."

Briscoe agreed that he was the highest ranking person working that evening, and if he had a subordinate sergeant that was having a problem with one of his subordinate detectives, he would expect that to be brought to his attention. He agreed that Capuano responded to the command and they had a conversation about the Respondent's conduct before calling Hansen. He did not recall Capuano telling him that the Respondent "was acting irrational in a threatening manner," or that "he was afraid or in fear" of the Respondent that night.

Briscoe said that the field operations desk is the security post for the facility. The facility is "non-public" and only police personnel are allowed on-site. He said that if a person is assigned to that post, he would expect them to maintain their post "unless a necessity, other necessity arises." He said he has seen two people assigned to the field operations desk post before. He said he would assign the second person to another function in the command if needed or "find something for them to do." Otherwise, the second person could give the other a break or meal relief. He agreed that he has seen a situation where two people were assigned to the same post, and has dealt with that issue "numerous times," and expect his supervisors that are below him to be able to handle that problem as well.

When Briscoe left the command to go out to the field at about 1700 hours, he did not see Debellis. He said that when someone comes off sick, sometimes there is a "Teletype," but he believed the person coming off sick is supposed to notify the command that he is returned from sick and give the specific date and tour of his return to work. He said when he initiates disciplinary action, "[i]t's never personal...It's based upon Department rules and regulations."

The Respondent's Case

The Respondent testified in his own behalf.

The Respondent

The Respondent was appointed to the Department in 1995 and promoted to the rank of detective in 2000. He was assigned to Narcotics Borough Staten Island in 2003, and was working there on December 8, 2007. On that day, he returned from sick and was scheduled to do his regular tour, 2127 by 0600 hours at his regular post at the field operations desk.

The Respondent said that when he reported to the field operations desk, it was not occupied and he did not remember relieving anybody. He believed Debellis was the person assigned to that post, as that was what was stated on the roll call located on a clipboard by the desk. He said there were no supervisors in that immediate area when he arrived at his command.

The Respondent said that Debellis showed up at her post a half hour late and changed the roll call by putting herself "present for duty 2200, approved by Sergeant Capuano." She did this in front of the Respondent. He said "everybody knows the

midnight tours starts at 2127 hours. That's the scheduled tour."

The Respondent said that he told her that she was a half hour late and told her to "sign in at the correct time." He said that she responded to him by making a facial expression. He said she signed in and was upset. She inquired as to why he was in, and he said he had "called one of the civilians" from Narcotics Borough Staten Island, and this tour was his "first one back after returning from sick." He stated that he had called Capuano regarding returning to work but he was not in, so he called one of the civilians who handled his timekeeping and informed him. He did not recall the civilian's name and described him as a "male Indian gentleman."

The Respondent said that he got a slip to return back to work from a Department doctor at the Medical Division, and he brought that slip with him when he reported to work. He did not recall whether or not the Medical Division contacted his command to let them know he returned from sick duty, but said, "They are supposed to."

The Respondent said Debellis was upset because she had to find a babysitter. Their conversation took place while he was behind the field operations desk and she was on the other side, having just come from outside the building. He said his tone of voice was the same as the tone he used in the courtroom, described by the Court as "speaking firmly" and not in a raised voice. The Respondent stated that when he told Debellis, "...you are a half hour late. Sign in at the correct time," he said this in "a sarcastic way." He said their conversation "was like a few seconds," and then Debellis went upstairs. He assumed that she went to the second floor because Debellis and Capuano work in the same office on the second floor.

The Respondent said that when he first arrived and took over the field operations

desk, he had to account for prisoners' property in lockers, inventory equipment, and conduct security checks of the building every hour. He made entries in the command log concerning his activities. After Debellis left, he did not see her again until Capuano ordered him to get her.

The Respondent said that Capuano had called the field operations desk and did not ask why the Respondent was back. Instead, he asked for Debellis and told him to "get her." So, in a sarcastic manner, the Respondent said, "Thanks for the three days." He said he spoke "in a calm manner, but very sarcastically" because Capuano would not approve his request for days off.

The Respondent said Capuano was off duty but Sergeant Iarola and Briscoe were working and out in the field. He said that after telling Capuano that Debellis was upstairs, he said, "You know her phone number and you know her extension upstairs, why don't you call her." Capuano replied, "I am ordering you to go get her." The Respondent said, "Fine," and hung up the phone.

He said that Capuano referred to Debellis as "Gina," and saying, "Go get Gina for me." He said he advised Capuano that he had vouchers out, he was counting them, and did he (Capuano) want him to leave his post to get Debellis. He said, "Fine," and admitted that he did "hang up on him again."

The Respondent said that if he left his post unoccupied, there would be no one "there to confront someone who walks in the building." He said that based on his experience at the field operations desk post, he has had people come into the facility that did not belong there.

After securing all the vouchers and putting everything back in the locker, the

Respondent said he left his post as per Capuano to get Debellis. He said he went upstairs and found her in the staircase, where she appeared to be on her cell phone. He then said to her, "Sergeant Capuano is looking for you...Is that him? If that's him, tell him to go fuck himself..." He then went back downstairs.

The Respondent said he made the comments directed at Capuano because he was ordered to get Debellis, because he was mad that she was on the second floor and he could not find her, and because he had to account for the vouchers and property and equipment by himself. He said that Debellis had left him at the post by himself "numerous times. She was coming in and just doing her own thing and it was accepted...by the whole command." He said every detective and supervisor knew "she had a problem with her kid, and she would come and sign in, sometimes even change roll calls for her, and go and take care of her kid or her second house investment."

When the Respondent went downstairs, the field operations desk phone was ringing and he answered it. Capuano was on the line and asked him about "that smart remark." The Respondent replied, "You ask me to leave my post, and she (Debellis) is already on the phone with you." He said the sergeant "[k]ept threatening me with suspension." That was when he said, "[Y]ou know what, come here and suspend me then, jerk off." He said that prior to working at Narcotics Borough Staten Island, he "used to see him" in Brooklyn South Narcotics. He agreed that he was assigned to work with him at some point in his career prior to Staten Island.

The Respondent said that while having this conversation with Capuano, Briscoe walked in. He said to the lieutenant, "...your sergeant is off duty threatening to suspend

me, and I think he is on his way in to suspend me. I would like to make an EEO³ complaint against him, you know, the prior incident and this incident.” He said Briscoe responded, “I’m not getting involved with that shit,” and then walked into his office. He said Debellis was not there.

The Respondent said that Capuano showed up at the command at about 10:30 p.m. on December 8, 2007, told him, “You’re done,” and then went to Briscoe’s office. At about 1:30 a.m. on December 9, 2007, Briscoe told the Respondent he was suspended. When the Respondent asked why, he was told, “Oh, you’ll find out.” The Respondent said that he said, “All you management types think alike. I guess management sticks together.” He claimed that Briscoe had added the word “fucking” to his statement. He said he never lost professionalism with Briscoe, as he worked with him for a year before he served in Operation Iraqi Freedom, and for two years before that.

The Respondent said he was not interviewed by Captain Hansen, who came in while he was at the field operations desk, gave him a dirty look, and went upstairs. He denied that Briscoe ever asked him about what occurred between he and Debellis or Capuano. He agreed that Briscoe told him he was being suspended, “and that was the end of the conversation.” He did not find out what he was suspended for until month later, when he went to pick up his charges and specifications.

On cross-examination, the Respondent said that prior to going sick, he had an individual vacation pick day approved for his birthday, December 4, 2007. He asked Capuano for an additional two vacation days, December 5 and December 6, 2007, which the sergeant did not grant. Then the Respondent said he requested to go administrative sick on the latter two dates, which Capuano also did not grant. The Respondent said he

³ Equal Employment Opportunity

then informed Capuano that he was withdrawing his individual vacation pick day and that he was going regular sick for the three days. He said he had "severe flu" that "escalated to strep throat." The three days were followed by his regular days off and he went back to work the evening of December 8, 2007 (for the midnight tour for December 9, 2007).

The Respondent acknowledged that he told a "male Indian" civilian timekeeper that he was returning from sick. He said he tried calling Capuano but he was not there, and said there is no supervisor at the field operations desk. When asked if he called Briscoe to let him know he was coming back from sick, the Respondent asserted, "I don't have that type of relationship where they give me their personal phone numbers."

The Respondent said he arrived at work on December 8, 2007 at 9:15 p.m. and did not know there was going to be someone else coming in to work the same tour as he. He did not contact anyone once he got in to work to say he was present because he did not have Capuano's cell phone number and the other supervisors were out in the field. He said when he was signing in he saw Debellis' name on the midnight roll call. When asked if there are normally two people sitting at the field operations desk, the Respondent replied that sometimes there are four people there. He said Debellis never gave him a chance to say, "I'm here, you can go home." He said she never made a phone call from the field operations desk, however, when he went upstairs on the second floor, she was on her cell phone. He agreed that he said to her, "If you are on the phone with Sergeant Capuano tell him to go fuck himself." He said he did not say the comments to her – they were directed at Capuano.

The Respondent agreed that he was familiar with Patrol Guide procedures regarding discourtesy, and that telling Capuano to "go fuck himself" was discourteous.

He said he made this statement because of an incident that happened about a year prior to this incident where Capuano was “yelling...and cursing” at him like he was “a two-year old,” and the Respondent walked out of his office.

The Respondent said that during his first conversation with Capuano on the phone, he sarcastically said, “[T]hanks for the three days.” He said Capuano “constantly kept on calling,” and during the second or third phone call, he did say “[T]hanks for the fucking three days.”

The Respondent agreed that he hung up on Capuano because he had to go upstairs to get Debellis. He said that prior to hanging up, he advised Capuano that he (Capuano) knew Debellis’ cell phone number and her extension upstairs, but that he will go get her, and hung up the phone.

The Respondent admitted that he told Capuano, “come and suspend me, jerk off.” He agreed that this was discourteous. He said he did not recall telling Briscoe “all you fucking management types stick together,” but he might have. He said he was very professional with Briscoe.

Upon questioning from the Court, the Respondent said that after he returned from serving in Operation Iraqi Freedom, he was under Capuano’s supervision for the whole year of 2007. He said Capuano knew him when Capuano was a detective in Brooklyn South, and he knew that the Respondent had made an EEO complaint against a sergeant in Brooklyn South. He said he was sent to Staten Island Narcotics to get him “away from the situation.”

The Respondent said the first time he met Capuano, Capuano told him, “I remember you from Brooklyn South,” like he was aware that he (the Respondent) had

“made EEO complaints in the past.”

The Respondent agreed that by December 8, 2007, he was “kind of angry” toward Capuano. He said the sergeant was trying to put Debellis in his position and constantly threatening to send him to a team and threatening to suspend him.

The Respondent was asked if he ever made a formal complaint to anyone in the Department about his contention with Capuano prior to December 8, 2007. He replied, “Yes...I went up to Detective Bourne, my delegate, and advised him that he is harassing me because of my military days, he is harassing me that I don’t put a day in.”

On redirect examination, the Respondent denied that he had the authority as a detective to send anyone home if there is another person on the same post. He said, “I am a detective just like she (Debellis) is.”

FINDINGS AND ANALYSIS

The Respondent is charged with being discourteous to Sergeant Capuano through a series of statements that included: “If that’s Sergeant Capuano, tell him to go fuck himself,” (Specification No. 1); “Thanks for those three days off, the fucking three days I had to go sick for, go fuck yourself,” (Specification No. 2); “Why don’t you come down here and fucking suspend me if you want. Go fuck yourself.” (Specification No. 3)

The Respondent is further charged with failing to comply with an order given by Capuano where he refused to obey the order to put Debellis on the telephone (Specification No. 5), and with being discourteous to Lieutenant Briscoe where he stated “All you fucking management types stick together.” (Specification No. 4)

Detective Debellis, Sergeant Capuano and Lieutenant Briscoe credibly testified

for the Department. Debellis stated how the Respondent, for reasons unknown to her, became upset when she was leaving a voicemail for Capuano and he stated, "If that's Capuano, tell him fuck you, fuck his mother, fuck him." She then recalled that the phone at the field operations desk rang "pretty quickly" after she ended her call to Capuano and the Respondent answered it and she heard him say, "Thanks for the fucking days off. I hate this fucking place. I had to go fucking sick." The Respondent then slammed the phone down. Debellis believed that the call was from Capuano, who was responding to the voicemail message that she just left him.

Debellis then went upstairs but she continued to hear the Respondent "screaming and yelling" downstairs and saw him doing "Kung Fu kicks and fighting...doing these punches [saying] 'I'm going to kick his ass, I'm going to snap him like a twig.'"

Shortly thereafter, Capuano came to the command and she heard the Respondent say to him, "What, what, what are you going to do? What, what, you're here to suspend me? What, what, I will fucking kick your ass." The Respondent's arms were open out wide as though he was challenging Capuano to a fight.

Capuano testified that he received a voicemail from Debellis and in the background of the message he clearly heard the Respondent say, "If that's Sergeant Capuano, tell him to go fuck himself." He then called the command and the Respondent answered the phone and at one point he told Capuano, "Thanks for those three fucking days off that I had to go sick. Go fuck yourself" and then hung up the phone. Capuano called again and the Respondent again answered the phone. Capuano then ordered him to put Debellis on the phone and the Respondent told him, "What are you going to do, come down here and fucking suspend me? Come down and suspend me." He then hung up the

phone again.

Capuano then went to the command and when he saw the Respondent he had his arms spread out in a threatening manner and he told Capuano, "What are you going to do, fucking suspend me? Come suspend me."

Brisco testified that when he returned to the command he heard the Respondent speaking in a loud voice and using profanity. He observed the Respondent with Debellis and when he asked if everything was alright he was told there was no problem. He told the Respondent that if he had a problem it would have to be addressed in the "proper forum." The Respondent then replied, "You fucking management types are all alike. You stick by one another."

The Respondent, during his testimony, admitted to being discourteous. He admitted to telling Capuano in a sarcastic manner, "Thanks for the three days off." He also admitted that when Capuano ordered him to get Debellis he told Capuano that he knew her number and hung up the phone. When Capuano called again and told him, again, to get Debellis he hung up the phone, again, without getting Debellis. He then went upstairs, found Debellis on her cell phone and told her, "Sergeant Capuano is looking for you...Is that him? If that's him, tell him to go fuck himself..." He further admitted that Capuano "kept threatening me with suspension" and he then told Capuano "you know what, come here and suspend me then, jerk off."

The Respondent also admitted telling Briscoe, "All you management types think alike. I guess management sticks together." He even admitted that it was possible that he used the term "fucking management types."

This Court finds that the Respondent admitted to being discourteous and to

disobeying an order but underestimates the language that he used. This Court further finds that based on all of the testimony heard at this trial, the language in the specifications more accurately reflect what the Respondent actually said.

Accordingly, the Respondent is found Guilty as charged.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y. 2d 222 (1974).

The Respondent was appointed to the Department on June 30, 1995. Information from his personnel folder that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent has been found Guilty of being discourteous to a sergeant and a lieutenant and also found Guilty of disobeying an order given by the same sergeant.

The chain of command is the cornerstone for any military or paramilitary organization and the Respondent has shown a complete lack of regard for, and a willingness to belittle, two superior officers in the chain of command of the New York City Police Department.

Accordingly, based on the foregoing and the Respondent's service record, I recommend that the Respondent be DISMISSED from the New York City Police Department, but that his dismissal be held in abeyance for a period of one year, pursuant to Section 14-115 (d) of the Administrative Code, during which time he remains on the force at the Police Commissioner's discretion and may be terminated at anytime without further proceedings. I further recommend that the Respondent forfeit the 31 days he

previously served on suspension and forfeit an additional 9 vacation days, for a total penalty of 40 days.

Respectfully Submitted,

John Grappone
by Matt Kelly

John Grappone
Assistant Deputy Commissioner—Trials

APPROVED
NOV 22 2010
[Signature]
RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
DETECTIVE MIKE ONER
TAX REGISTRY NO. 916363
DISCIPLINARY CASE NO. 83547/07

In his yearly evaluation of 2006, the Respondent was rated 3.5, "Above Competent." In 2008 and 2009, he was rated 4.0, "Highly Competent." He has received two medals for Meritorious Police Duty.

[REDACTED]

[REDACTED]

He has no prior formal disciplinary record.

For your consideration.

John Grappone
by Mark Karph
John Grappone
Assistant Deputy Commissioner – Trials